

#	Case Name	Tentative
50.	Sunwest Bank v. Encino Towers, LLC 2023-01329501	Anthony O. Egbase, Esq. and A.O.E. Law & Associates, Inc.'s motion to be relieved as counsel of record is GRANTED in part and CONTINUED in part as follows. The motion is GRANTED as to the following clients only, effective upon the filing of the proof of service of the signed order upon the clients: (1) Millennium Hospice Care, Inc.; (2) Blue Haven Hospice & Palliative Care, Inc.; (3) Hollywood Health Services, Inc.; (4) Med Plus Hospice Care, Inc.; (5) Relyable Hospice Care, Inc.; (6) Toluca Hospice Care, Inc.; (7) VIP Hospice Care; (8) Especial Care Hospice, Inc.; (9) Golden Hills Healthcare Services, Inc.; and (10) AIM Hospice Care, Inc. An order to show cause is set for August 28, 2026 at 9:00 a.m. in Department C28. At the hearing, the Court will strike the answer and enter default for defendants: (1) Millennium Hospice Care, Inc.; (2) Blue Haven Hospice & Palliative Care, Inc.; (3) Hollywood Health Services, Inc.; (4) Med Plus Hospice Care, Inc.; (5) Relyable Hospice Care, Inc.; (6) Toluca Hospice Care, Inc.; (7) VIP Hospice Care; (8) Especial Care Hospice, Inc.; (9) Golden Hills Healthcare Services, Inc.; and (10) AIM Hospice Care, Inc. for their failure to appear through counsel unless they (a) substitute in new counsel before the hearing or (b) appear at the hearing and show good cause otherwise. (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal. App. 4th 1141, 1146 [holding that a corporation must appear through counsel]; <i>Van Gundy v. Camelot Resorts, Inc.</i> (1983) 152 Cal. App. 3d Supp. 29, 31-32 [court should enter default for corporation that fails to appear through counsel].) To the extent the motion seeks an order relieving Anthony O. Egbase, Esq. and the law firm of A.O.E. Law & Associates, Inc. as counsel for client Grove Hospice Care, Inc., the motion is CONTINUED to August 24, 2026 at 2:00 p.m. in this department. There is no proof of service of the moving papers on Grove Hospice Care, Inc. Although counsel's declaration states that service was made on the client via mail (see ROA No. 702), this attestation alone is not sufficient to satisfy the service by mail requirements of Code of Civil Procedure section 1013,

#	Case Name	Tentative
		subdivision (a), or the proof of service by mail requirements of Code of Civil Procedure section 1013a. Moving counsel is ORDERED to (1) properly serve all moving papers, including notice of the continued hearing date above, on Grove Hospice Care, Inc. and all other parties who have appeared in the case, and (2) file proof of service of the same, by no later than Monday 7/27/26. Moving counsel shall give notice of this ruling.
51.		
52.	Maranwe v. Saunders & Associates, APC 2025-01499956	Plaintiff Daniel Maranwe's motion for sanctions against defendants Saunders & Associates, APC, Gary Saunders, Vasili Papas, and Morena Elias, is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 128.5, 128.7.) The motion is GRANTED as to the request to strike the demurrer filed by defendant Saunders & Associates, APC (ROA 25, 35), and the motion to strike filed by defendants Gary Saunders, Vasili Papas, and Morena Elias (ROA 26, 33). Both the demurrer and motion to strike were filed under the name of attorney Wayne J. Quint III, and bear his purported signature. Plaintiff's evidence shows that attorney Quint denies signing or authoring defendants' demurrer or motion to strike, and denies authorizing defendants to file pleadings under his name, effectively rendering the demurrer and motion to strike as unsigned. (Maranwe Decl. in support of motion [ROA 46], ¶ 3, Ex. A [email from attorney Quint stating "I never EVER wrote this AI slop ... Gary [V]asili and [M]orena thought it would be acceptable to send this with my name on it ... I will be reporting them to the State Bar"]; see also <i>id.</i> at ¶ 8, Ex. G [texts by attorney Quint denying authorizing defendants to file motions under his name without his consent]; Code Civ. Proc., § 128.7, subd. (a) ["An unsigned paper <u>shall</u> be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party;" emphasis added].) Moving plaintiff has further complied with the "safe harbor" provision of both statutes, by serving the motion to defense counsel by e-service on 2-2-26, which is more than 21 days before the motion was filed on 2-26-26. (Code Civ. Proc., §§ 128.5, subd. (f)(1)(B), 128.7, subd. (c)(1); Maranwe Decl. in support of motion, ¶ 9, Ex. I.) Accordingly, the court orders that the demurrer filed by defendant Saunders & Associates, APC (ROA 25, 35), and the motion to strike filed by defendants Gary Saunders, Vasili